

Council Meeting

August 9, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, August 9, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Mayor Girard asked to remove Item B Clerical MOU and to remove item C Resolution 2024-11 EOP. These items will be moved to the August 23rd Council meeting.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Councilor Stone to accept the minutes of the July 26, 2023, City Council meeting.

Voice vote:

O’Hearne - Yes

Batchelder - Yes

Stone - Yes

Matteau - Abstain

Koloski - Yes

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Limoges - Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion carried 8-0, 1 abstain

MAYOR'S NOTES

Mayor Girard bringing attention to Scott Baker an employee at DPW for his work on the beautifully carved signage out of stone, on the corner of North Street and Grandview.

Mayor Girard gave an update on the five properties that will be up for auction on Saturday August 12th taking place at the Claremont Savings Bank Community Center.

The next Second Saturday event will be taking place on Pleasant Street from 4pm-8pm with the theme Throw Back To The 90's.

The Parks and Recreation Department will be hosting the All Out Trail Run August 19th in Moody Park.

Fiske Free Library is celebrating their 150th anniversary August 23rd 1pm - 4 pm.

CITY MANAGER'S REPORT

Manager Manale thanked the responding police officers and the department for quickly taking control of the shooting on Trinity and Walnut.

Manager Manale stated during the last storm dropped four inches of rain within thirty minutes, causing flash flooding. Luckily damage was minimal with some damage on Springfarm Road and a bridge partially washed out on Sullivan Street. Thank you to DPW workers.

Manager Manale, gave updates on the significant fire that took place on Sullivan Street. The Department faced many challenges during the fire such as the size of the building, construction type, and fuel load. Additionally, there was limited access to the rear of the building. Straining the local water system using approximately 5,000 gallons a minute to keep up. We used five fire engines, twenty departments responded and over one hundred personal. Thank you to all Fire personnel. The fire is being treated as suspicious, and the NH Fire Marshalls are conducting an active investigation. Thank you to generous businesses that donated food and beverages to fire fighters.

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Councilor Koloski inquired about the Parks and Recreation report in seeking a professional opinion on the proposed location of the Dog Park.

Manager Manale stated the City is looking at design and what the dog park would look like at Moody Park.

Councilor Koloski shared concerns about cost recovery for the Canobie Lake trip through the Parks and Recreation Department.

Councilor Koloski gave thanks to the garden group taking care of City Hall, and stated the garden looks amazing. There was a lot of positive feedback from the public.

Councilor Koloski following up on Rocky the squirrel and the damage he has caused to the library.

Manager Manale shared the city is determining the damage costs for the squirrel activity.

Councilor Stone requested revenue and expenditure chart for the Parks and Recreation be put back in the regular report for easier tracking.

APPOINTMENT TO BOARDS AND COMMITTEES

Airport Advisory Board

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to appoint Arthur LaPorte to Seat 2 of the Airport Advisory Board.

Voice vote:

O’Hearne - Yes

Batchelder - Yes

Stone - Yes

Matteau – Yes

Koloski - Yes

Limoges - Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

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MT. Ascutney Region River Subcommittee of the Connecticut River Joint Commission

A motion was made by Councilor Koloski and seconded by Councilor O’Hearne to Nominate David Bailey to Seat 1 of the MT. Ascutney Region River Subcommittee of the Connecticut River Joint Commission.

Voice vote:

O’Hearne - Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

Conservation Commission

A motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to appoint David Bailey to Seat A3 of the Conservation Commission.

Voice vote:

O’Hearne - Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

Francis J. Tolles Home Board of Trustees

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A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to appoint Nancy Porier to Seat 3 of the Frances J. Tolles Home Board of Trustees.

Voice vote:

O’Hearne -Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

Claremont Planning Board

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to appoint Maxime Guinel De France for Seat A-1 on the Claremont Planning Board.

Voice vote:

O’Hearne -Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

CITIZEN’S FORUM

Mayor Girard reminded all citizens may speak for five minutes on non-agenda items, and asked to announce their name and ward.

Chuck Allen, Ward 3, stated he was informing the Council and public on the Passing of Leon Hobbs. Mr. Allen expressed condolences and the impact Mr. Hobbs has made in the community

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and at Arrowhead Recreation Club. Services will be held at Stringers Funeral Home Thursday August 10th 5pm-7 pm.

Hope Damon, Sullivan County District 8 State Representative gave, a detailed update of summer projects being worked on, A lot of work in regards to roads. Damon is working with Representative Gary Merchant and Representative John Cloutier to increase enrollment in the free lunch program, and is also continuing to work on housing concerns.

OLD BUSINESS

Resolution 2023-35 ARC and Wheelhouse Agreement- Public Hearing

Manager Manale explained these agreements have some changes that were requested by Council such as the removal of the deck, changing the oversight of the agreements to the City Manager from the Parks and Recreation Director, added in hazardous material use restrictions. Also adding the option for contract termination if Wheelhouse does not provide funds; only in the Wheelhouse contract. Event fees were changed, these items must be preapproved by the Council in the Cities fee schedule. Payments moved to quarterly from monthly, and slight change in the insurance language.

Councilor Stone questioned if the Wheelhouse has agreed to the terms of the contract.

Manager Manale stated there is a tentative agreement, and noted they were waiting on the Council's opinion on this agreement.

Councilor Stone stated he thought the council would see something the Wheelhouse had actually signed off on and given to us for our approval.

Manager Manale stated ARC and Wheelhouse have asked to see what the Council ultimately approves.

Councilor O'Hearne stated that the Council has always had the documents approved by the committee in hand before approving.

Councilor Koloski shared concern for ADA bathroom compliance, and asked if there are numbers for renovation project.

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RESOLUTION 2023-35

Arrowhead Recreation Area Operating Agreements

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire (hereinafter “City”) entered a lease agreement with the Arrowhead Recreation Club (hereinafter “ARC”) dated 4/1/2002 for use of the Arrowhead Recreational Area property by ARC to operate a ski area for the benefit of the citizens of Claremont; and

WHEREAS The City, ARC and The Wheelhouse, LLC (hereinafter “Wheelhouse”) have agreed that ARC and Wheelhouse will jointly occupy and conduct operations at the Arrowhead Recreation Area pursuant to separate operating agreements with the City.

NOW THEREFORE BE IT RESOLVED that the City Manager or his designees are authorized to undertake all actions and execute all documents necessary to finalize the operating agreements between the City, ARC and the Wheelhouse, and to terminate the 4/1/2002 lease.

Dated this 9th day of August, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to adopt Resolution 2023-35.

No one read resolution 2023-35 into the record.

Mayor Girard opened a public hearing.

Brian Zutter, Ward II, a member of ARC Board. The Board has agreed to the operating agreement Mr. Zutter shared concerned for the concerns of the Council such as the ADA compliant bathrooms. Mr. Zutter questioned if this was the Cities responsibility.

Mayor Girard stated the Board has not had a meeting since before the changes were made to the agreement.

Brian Zutter stated the Board agreed in the last meeting about the Operating Agreement and they are awaiting details.

Rob Walker, Ward I, stated the agreement has the Wheelhouse’s approval. The Board wants a clear outline of what is needed to move this along.

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Mayor Girard closed the Public hearing, and brought the discussion back to Council level.

Councilor Koloski stated he was not comfortable acting on this agreement, and addressed Mr. Zutter's question for the ADA compliance.

Manager Manale stated that taking care of the ADA bathrooms will have to be in the future Capital improvement plans. The City does have an obligation to make the bathrooms ADA accessible.

Councilor Koloski stated he does not agree with this project just going into the Capital Improvement Plan.

Rob Walker, Ward I, stated the MOU gives access to ADA bathrooms to all users and stated this verbiage can be added to make the Council more comfortable.

Mayor Girard asked for clarification that there are ADA bathrooms upstairs but, the issue is the downstairs bathroom is not considered to be up to ADA requirements, and asked if this would immediately.

Councilor Koloski expressed the Council is getting hot seat questions, and just today he received a complaint that the MOU should have been published to the public. Councilor Koloski does not want to move on the agreement tonight until concerns are cleared up.

Councilor Stone expressed frustration with getting agenda items last minute. Councilor Stone suggested a motion to table.

Roll call:

O'Hearne - Yes

Batchelder - No

Stone - Yes

Matteau - No

Koloski - No

Limoges - Yes

Contois - No

Mooshian - No

Girard - Yes

Motion failed 5-4

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to table Resolution 2023-35.

Roll call:

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O’Hearne - Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois -No

Mooshian - No

Girard - Yes

Motion Carried 7-2

Councilor Koloski stated that he wouldn’t have failed this motion if the council had all of the information.

Councilor Batchelder agreed with Councilor Koloski.

Assistant Mayor Matteau stated if the Council tables this item tonight, the Council wants the MOU between ARC and Wheelhouse published publicly.

Councilor Stone stated the purpose of his motion was to give the public such notice.

A motion was made by Councilor Koloski and seconded by Councilor Stone to reconsider the above motion to table Resolution 2023-35 to include the MOU between ARC and Wheelhouse be published publically and to add Resolution 2023-35 to the August 23rd 2023 Council meeting.

Roll call:

O’Hearne - Yes

Batchelder - No

Stone - Yes

Matteau - No

Koloski - Yes

Limoges - Yes

Contois -No

Mooshian - No

Girard - Yes

Motion Carried 5-4

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NEW BUSINESS

Ordinance 611 LUCT – First Reading - Public Hearing

Gary Dickerman, Ward I explained the Land Use Change Tax was capped at \$5,000.00 and noted there is a typo in the explanation and ordinance 607 should be changed to 611.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #611

Conservation Commission Ordinance Amendment

The City of Claremont Ordains:

Part 1, Chapter 2, Article II, Division 3, Sec. 2-55 of the Claremont City Code is hereby amended as follows:

Section 1.

Sec. 2-55. - Conservation fund.

Sec. 2-55. - Conservation fund.

Any money received by the conservation commission shall be placed in the conservation fund and allowed to accumulate from year to year, and money may be expended by the conservation commission from such fund for purposes consistent with the stated purposes of this division. All receipts and expenditures by the commission shall be conducted in accordance with NH RSA 36-A:5. All Land Use Change Tax receipts by the City of Claremont shall be immediately transferred to the Conservation Fund.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

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Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Contois and seconded by Councilor Limoges to pass Ordinance 611 to a second reading at the next Council Meeting August 23, 2023.

Councilor Contois read ordinance 611 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O’Hearne - Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

COMMITTEE REPORTS

Policy – Councilor Stone stated the next meeting date was scheduled for Tuesday, August 22nd, the board will be reviewing cemeteries.

Planning- Assistant Mayor Matteau informed the Council of a driveway denial.

Conservation- Councilor Contois stated there was no meeting since the last report.

HD - Councilor Batchelder shared there were two certificates approved.

Airport Committee – Mayor Girard noted there was discussion on Airport taxing, beacon, and waiting on FFA to finalize plans.

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FUTURE AGENDA ITEMS AND DIRECTIVES

Assistant Mayor Matteau thanked the City Manager and staff for cleaning the property on Mulberry Street.

Councilor Koloski stated the Former Sunoco gas station has no do- not- enter signs. Kids have been in there, and as it stands the building has broken glass.

Councilor Koloski suggested to set a date for the Council to tour the Community Center as a group.

Mayor Girard asked for clarification that this would be a non-regular meeting for the Community Center visit.

Manager Manale stated that all new equipment should be installed at the Community Center in the next few weeks, suggested to schedule a tour after that.

Councilor Koloski stated he received a community member complaint of parking on the sidewalk on Sullivan Street, Councilor Koloski inquired about the weight limit on sidewalk curbs.

Manager Manale noted all new sidewalks that are going in are with granite curbs to avoid parking issue.

Councilor Koloski inquired about where to start the conversation for Air BNB's in the City if it should be at the Planning Board level or another avenue.

Manager Manale stated Air BNB's are being discussed.

Councilor O'Hearne inquired about a plan for weeds along Pleasant Street.

Manager Manale stated Director Merrill reached out to a few landscaping companies to get a few quotes. Director Merrill also reached out to some businesses to ask if there was any interest in adopting some of the planters.

Councilor Batchelder suggested reaching out to the group doing landscaping for Opera House.

Assistant Mayor Matteau stated summer is almost over let's just let people weed it. Sharing frustration that after all the money spent on Pleasant Street to see so many weeds.

Manager Manale agreed in Assistant Mayor Matteau's frustration and explained insurance issues to get current contractors back to assist with this problem.

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Councilor Koloski stated he saw Parks and Recreation was weeding flower beds as well.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 7:25 p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to adjourn.

Roll call / Voice vote:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0 Voice

Respectfully Submitted,

Jamie De Rosa
Acting Clerk to the Council